

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabel Cifarelli	Team: Squad #13	CCRB Case #: 202100328	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 01/14/2021 10:08 PM, Thursday, 01/14/2021 10:30 PM	Location of Incident: § 87(2)(b) En route to the 71st Precinct stationhouse	Precinct: 71	18 Mo. SOL 7/14/2022	EO SOL 7/14/2022	
Date/Time CV Reported Fri, 01/15/2021 5:36 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 01/15/2021 5:36 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. LT Daniel Guida	00000	941862	071 PCT
4. POM Mirsad Radoncic	24382	967272	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jason Schreckenstein	01340	956247	071 PCT
2. POM Craig Smith	07105	956272	071 PCT
3. PO Natalia Galarza	01449	966582	071 PCT
4. SGT John Kenny		950674	

Officer(s)	Allegation	Investigator Recommendation
A.LT Daniel Guida	Abuse: Outside § 87(2)(b) in Brooklyn, Lieutenant Daniel Guida stopped § 87(2)(b)	§ 87(2)(b)
B.LT Daniel Guida	Abuse: Outside § 87(2)(b) in Brooklyn, Lieutenant Daniel Guida stopped § 87(2)(b)	§ 87(2)(b)
C. Officers	Abuse: Outside § 87(2)(b) in Brooklyn, officers frisked § 87(2)(b)	§ 87(2)(b)
D. Officers	Abuse: Outside § 87(2)(b) in Brooklyn, officers searched § 87(2)(b)	§ 87(2)(b)
E. Officers	Abuse: Outside § 87(2)(b) in Brooklyn, officers frisked § 87(2)(b)	§ 87(2)(b)
F. Officers	Abuse: Outside § 87(2)(b) in Brooklyn, officers searched § 87(2)(b)	§ 87(2)(b)
G.POM Mirsad Radoncic	Abuse: Outside § 87(2)(b) in Brooklyn, Police Officer Mirsad Radoncic searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	§ 87(2)(b)
H.LT Daniel Guida	Discourtesy: Outside § 87(2)(b) in Brooklyn, Lieutenant Daniel Guida acted discourteously toward § 87(2)(b)	§ 87(2)(b)
I. Officers	Force: Outside § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	§ 87(2)(b)
J. Officers	Force: Outside § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
K.LT Daniel Guida	Force: Outside § 87(2)(b) in Brooklyn, Lieutenant Daniel Guida restricted § 87(2)(b)'s breathing.	
L. Officers	Abuse: Outside § 87(2)(b) in Brooklyn, officers refused to provide their names to § 87(2)(b)	
M. Officers	Abuse: Outside § 87(2)(b) in Brooklyn, officers failed to provide § 87(2)(b) with a business card.	
N.LT Daniel Guida	Abuse: En route to the 71st Precinct stationhouse in Brooklyn, Lieutenant Daniel Guida did not obtain medical treatment for § 87(2)(b)	
O. An officer	Off. Language: En route to the 71st Precinct stationhouse in Brooklyn, an officer made remarks to § 87(2)(b) based upon his race.	
P. An officer	Off. Language: En route to the 71st Precinct stationhouse in Brooklyn, an officer made offensive remarks to § 87(2)(b) based upon his perceived mental abilities.	
Q. An officer	Discourtesy: En route to the 71st Precinct stationhouse in Brooklyn, an officer spoke discourteously to § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 15, 2021, § 87(2)(b) filed this complaint via the CCRB's website on behalf of himself and his friend, § 87(2)(b).

On January 14, 2021, at approximately 10:08p.m., § 87(2)(b) and § 87(2)(b) were sitting in § 87(2)(b)'s vehicle with the engine on outside of § 87(2)(b)'s home, located at § 87(2)(b) in Brooklyn, when PO Mirsad Radoncic, PO Jason Schreckenstein, PO Craig Smith, and Lt. Daniel Guida, all of the 71st Precinct, pulled up next to § 87(2)(b)'s vehicle in theirs and stopped § 87(2)(b)'s vehicle (**Allegation A: Abuse of Authority**, § 87(2)(g)). The officers ordered § 87(2)(b) and § 87(2)(b) to exit the vehicle, and once they did so, officers frisked and searched them (**Allegations B, C, D, and E: Abuse of Authority**, § 87(2)(g)). The officers walked § 87(2)(b) and § 87(2)(b) to the rear of the vehicle, and PO Radoncic searched the vehicle (**Allegation F: Abuse of Authority**, § 87(2)(g)). At the rear of the vehicle, Lt. Guida asked § 87(2)(b) for his name several times, and § 87(2)(b) did not provide it. Lt. Guida and PO Smith then began to place § 87(2)(b) in handcuffs, during which Lt. Guida allegedly stepped on § 87(2)(b)'s shoes (**Allegation G: Discourtesy**, § 87(2)(g)). **Allegation H: Force**, § 87(2)(g). Several other officers joined the handcuffing process, and officers, including Lt. Guida, allegedly twisted § 87(2)(b)'s wrists, and pushed him against the rear of the vehicle, which restricted his breathing (**Allegations I and J: Force**, § 87(2)(g)). **Allegation K: Force**, § 87(2)(g). § 87(2)(b) was placed in the police vehicle and requested the names and business cards of all officers present, which he allegedly did not receive (**Allegation L: Abuse of Authority**, § 87(2)(g)). **Allegation M: Abuse of Authority**, § 87(2)(g). En route to the stationhouse, § 87(2)(b) requested medical attention, which he allegedly did not receive (**Allegation N: Abuse of Authority**, § 87(2)(g)). An officer allegedly stated under his breath that § 87(2)(b) was a "stupid nigger" (**Allegations O and P: Offensive Language**, § 87(2)(g)). **Allegation Q: Discourtesy**, § 87(2)(g). PO Radoncic transported § 87(2)(b)'s vehicle back to the stationhouse and performed an inventory search of the vehicle (**Allegation R: Abuse of Authority**, § 87(2)(g), § 87(2)(g), § 87(4-b)).

§ 87(2)(b) was released with criminal summons # § 87(2)(b) for § 87(2)(a) 160.50 (BR 01). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation received six body-worn camera ("BWC") videos related to this incident, recorded by Lt. Guida, PO Radoncic, PO Schreckenstein, and PO Smith. The videos are in IAs # 37-42 (**BR 02-07**) and summarized in IAs # 109-114 (**BR 08-13**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Daniel Guida stopped § 87(2)(b)
Allegation (B) Abuse of Authority: Lieutenant Daniel Guida stopped § 87(2)(b)
Allegation (C) Abuse of Authority: Officers frisked § 87(2)(b)
Allegation (D) Abuse of Authority: Officers searched § 87(2)(b)
Allegation (E) Abuse of Authority: Officers frisked § 87(2)(b)
Allegation (F) Abuse of Authority: Officers searched § 87(2)(b)
Allegation (G) Abuse of Authority: Police Officer Mirsad Radoncic searched the vehicle in which § 87(2)(b) **and** § 87(2)(b) **were occupants.**

It is undisputed that Lt. Guida, PO Radoncic, PO Smith, and PO Schreckenstein stopped § 87(2)(b) and § 87(2)(b) while they were inside § 87(2)(b)'s vehicle and ordered § 87(2)(b) and § 87(2)(b) out of the car. It is also undisputed that PO Radoncic and PO Schreckenstein frisked and searched § 87(2)(b) while Lt. Guida and PO Smith frisked and searched § 87(2)(b). It is undisputed that PO Radoncic searched § 87(2)(b)'s vehicle. § 87(2)(b) testified that he had a small, sealed plastic bag with three and a half grams of

marijuana and another, not sealed, small plastic bag with half a gram of marijuana in the exterior left breast pocket of his jacket (**BR 14**). He arrived at § 87(2)(b) parked behind § 87(2)(b) s vehicle, directly in front of the building, exited his vehicle, and got into the passenger seat of § 87(2)(b) s vehicle. He and § 87(2)(b) were planning to go into § 87(2)(b) s apartment and smoke the marijuana that § 87(2)(b) had brought, but § 87(2)(b) had not smoked at all that day and he could not smell marijuana in the vehicle or the surrounding area. Approximately 25-35 minutes after § 87(2)(b) arrived, Lt. Guida, PO Smith, PO Radoncic, and PO Schreckenstein approached the vehicle and ordered § 87(2)(b) to step out of the car. Officers frisked § 87(2)(b) while others frisked the exterior of § 87(2)(b) s jacket on his chest, then opened his left breast pocket, reached in, and pulled out the approximately four grams of marijuana, which the officers confiscated. Lt. Guida moved § 87(2)(b) to the rear of the vehicle, where § 87(2)(b) was, and PO Radoncic searched the interior of § 87(2)(b) s vehicle, opening all four doors and searching everywhere other than the trunk, by leaning his body into the vehicle, pointing his flashlight at the interior, and looking underneath the seats.

§ 87(2)(b) was unavailable to the investigation (see IAs).

PO Radoncic's first BWC video, from the 00:49 to 01:37 minute marks of the media player timestamp (visible at the bottom of the screen), shows PO Radoncic approaching the driver's side of the vehicle, pointing his flashlight through the closed, tinted window, where § 87(2)(b) can be seen holding a white can, and opening the door (**BR 03**). § 87(2)(b) and the interior of the vehicle are not visible until PO Radoncic shines his flashlight through, but due to the lighting conditions, it is unclear whether this is solely due to the tinted windows. PO Radoncic orders § 87(2)(b) to step out of the car and asks him if he has anything other than marijuana in the car. § 87(2)(b) says no and PO Radoncic tells him that if they have nothing other than marijuana in the car, they will be free to go shortly. PO Radoncic appears to place his hands inside § 87(2)(b) s sweatshirt and pants pockets. § 87(2)(b) is audible in the background telling officers not to touch him.

Lt. Guida's BWC footage, from the 00:54 to 02:36 minute marks of the media player timestamp (visible at the bottom of the screen), shows Lt. Guida approaching the passenger's side of the car, knocking on the window, and ordering § 87(2)(b) to step out (**BR 02**). § 87(2)(b) does not respond, and Lt. Guida opens the door and taps on § 87(2)(b) s arm. § 87(2)(b) tells him not to touch him. Lt. Guida grabs § 87(2)(b) s wrist and § 87(2)(b) steps out of the car. PO Smith and Lt. Guida both state that they could smell marijuana from the car. PO Smith unzips § 87(2)(b) s jacket and squeezes the left breast pocket, and a crinkling sound is audible. He then unzips it and reaches inside. Lt. Guida states, "You have weed in your pocket," and § 87(2)(b) states, "So what? What does that mean, bro? That's mine, that's not illegal." Lt. Guida states that it is illegal. The officers walk § 87(2)(b) to the rear of the car, where Lt. Guida pats down § 87(2)(b) s back pockets and waistband.

PO Radoncic's first BWC video, from 02:15 to 03:40, shows PO Radoncic searching the interior of the vehicle, first on and under the front passenger's seat, then the center console, then the back seat and the items within (a jacket, a small glass bottle), then on and under the front seat. At 02:25, a shallow paper cup appears to be in the cupholder, and a hand-rolled cigarette is inside. Another open white can is in the other cupholder.

PO Radoncic testified that at the time the officers initiated the stop, he had already detected the odor of marijuana (**BR 15**). He initiated the stop by exiting his vehicle. The officers' attention had been drawn to the vehicle because they were already next to it waiting at a red light and they smelled the odor of marijuana, which smelled like it was actively burning rather than marijuana that had been burnt in the past. § 87(2)(g)

§ 87(2)(b) Lt. Guida could not detect the odor of marijuana before approaching the vehicle (**BR 29**). PO Radoncic testified that they stopped the vehicle because of the odor of marijuana and because § 87(2)(b) s windows were excessively tinted, while Lt. Guida

testified that they stopped the vehicle because PO Schreckenstein had remarked that he believed the passengers were smoking marijuana, though he did not recall whether PO Schreckenstein informed him of why he believed this. PO Radoncic testified that he did not test the window tints on § 87(2)(b)'s vehicle.

Property voucher invoice number § 87(2)(b) shows that two small plastic bags of marijuana were recovered and vouchered as arrest evidence (**BR 16**).

Per People v. Chestnut, 43 A.D.2d 260 (1974) the smell of marijuana smoke, with nothing more, can be sufficient to provide police officers with probable cause to search a vehicle and its occupants (**BR 17**). Officers may stop a vehicle if they believe the windows to be excessively tinted, per People v. Bacquie, 62 N.Y.S.3d 425 (App. Div. 2nd Dept. 2017) (**BR 30**). No person shall operate a vehicle on a public roadway the front windshield, side windows, and rear side windows of which are composed of, covered by, or treated with any material which has a light transmittance of less than seventy percent, per NY CLS Veh & Tr § 375 12-a(b) (**BR 31**).

§ 87(2)(g)

§ 87(2)(g)

Allegation (H) Discourtesy: Lieutenant Daniel Guida acted discourteously toward § 87(2)(b).

Allegation (I) Force: Officers used physical force against § 87(2)(b)

Allegation (J) Force: Officers used physical force against § 87(2)(b)

Allegation (K) Force: Lieutenant Daniel Guida restricted § 87(2)(b)'s breathing.

PO Smith's BWC footage from the 02:48 to 04:45 minute marks of the media player timestamp (visible at the bottom of the screen) shows officers asking multiple times for § 87(2)(b)'s name (**BR 05**). Lt. Guida asks for his name, and § 87(2)(b) asks why they need it. Lt. Guida says they have to run his information to make sure he does not have any warrants. § 87(2)(b) states that the officers pulled him out of the car and grabbed him up. The officers and § 87(2)(b) talk over each other. Lt. Guida and PO Smith state that § 87(2)(b) had smelled like marijuana. § 87(2)(b) states that he did not and was not doing anything. Lt. Guida has one hand on § 87(2)(b)'s left shoulder and another hand on his chest. Lt. Guida states, "My man, I'm going to ask you one last time. Sir, are you going to give us your name, yes or no?" § 87(2)(b) asks why Lt. Guida is grabbing him like that. Lt. Guida states, "I'm asking you one last time. Listen, are you going to give us your name?" § 87(2)(b) keeps speaking while Lt. Guida states this. After Lt.

Guida asks, § 87(2)(b) states, "Why are y'all harassing me because I'm Black for, bro? Y'all didn't do that to the people in the Capitol, why are you doing this for over here. Why are you grabbing me up like this for?" While he is stating this, Lt. Guida states, "One last chance. Okay. Okay. Last chance. Last chance, give him your name. Are you going to..." Lt. Guida takes § 87(2)(b)'s left arm and pulls it behind his back. As he does this, § 87(2)(b) states, § 87(2)(b) "why are you grabbing me up?" Lt. Guida states, "Way too late." § 87(2)(b)'s torso is moving around. Lt. Guida takes § 87(2)(b)'s right arm and uses it to push him against the rear of the vehicle. § 87(2)(b) states that he is giving his name, and his car is right there running. PO Smith begins to place handcuffs on § 87(2)(b). Lt. Guida states several times that it is way too late. § 87(2)(b) states that he feels violated. Lt. Guida continues to tell § 87(2)(b) that it is too late. Lt. Guida's hand is on the back of § 87(2)(b)'s neck while PO Radoncic and PO Smith handcuff him. § 87(2)(b) is upright for the majority of the handcuffing process and is occasionally bent slightly forward over the trunk. It is unclear if his torso ever makes contact with the trunk. § 87(2)(b) states that the officers are violating him and stepping on his Louis Vuitton shoes, though the footage does not capture whether an officer steps on his feet or shoes. § 87(2)(b) is still facing the trunk of the car, and the officers try to get his keys and phone out of his hands, while § 87(2)(b) states that he does not want this to happen. PO Smith states that if § 87(2)(b) had just cooperated, he would not be going through this. PO Radoncic is holding § 87(2)(b) by locking his right arm underneath § 87(2)(b)'s left arm while his right hand is on § 87(2)(b)'s shoulder. § 87(2)(b) states that he cannot breathe three times as the officers walk him away from the trunk of the car to the police vehicle.

PO Radoncic's first BWC video from the 03:42 to 04:15 minute marks of the media player timestamp (visible at the bottom of the screen) shows § 87(2)(b) moving his hands forward away from officers while they grab his wrists and attempt to pull them back (**BR 02**). Once § 87(2)(b) is bent over the trunk, his torso continues to move side to side and front to back while the officers attempt to place handcuffs on him. No officer's BWC footage clearly captures every aspect of the handcuffing § 87(2)(g).

§ 87(2)(b) testified that while the vehicle was being searched, Lt. Guida asked him for his name. § 87(2)(b) stated that he did not want to tell the officers his name and that what the officers were doing was ridiculous. Lt. Guida stated, "Okay, that's it," and began to place § 87(2)(b) in handcuffs. Approximately eight seconds passed between Lt. Guida first asking for § 87(2)(b)'s name and placing him in handcuffs. Lt. Guida grabbed § 87(2)(b)'s right arm and pulled it toward him, and grabbed § 87(2)(b)'s back, twisting him around using his arm. He then pushed on § 87(2)(b)'s back so that he was bent over with the front of his body on the trunk of § 87(2)(b)'s vehicle. He immediately began placing handcuffs on § 87(2)(b) twisting his arms and wrists. The rest of the officers joined Lt. Guida in placing handcuffs on § 87(2)(b) but he was not able to see which officers had what role in handcuffing him because his back was turned. While he was being handcuffed, § 87(2)(b) was upset and told officers to stay away from his property and to give his car keys and phone to his friend. While some officers were taking § 87(2)(b)'s cell phone and keys out of his hands, Lt. Guida stepped on § 87(2)(b)'s right toes, which § 87(2)(b) felt was intentional and disrespectful because they were Louis Vuitton shoes. While the officers were handcuffing him and taking his phone out of his hands, § 87(2)(b) moved his torso away from the vehicle because he could not breathe. His breathing was restricted for approximately 40-45 seconds in total due to his positioning over the trunk of the car and because Lt. Guida's hand was on his back.

PO Radoncic testified that he held § 87(2)(b)'s arms steady while officers attempted to place handcuffs on him. § 87(2)(b) was facing the trunk of the car and was moving a small amount but was standing up straight. PO Radoncic did not twist § 87(2)(b)'s wrists. PO Radoncic could not tell whether § 87(2)(b) was intentionally trying to move around, or if § 87(2)(b)'s body was tensing up because he was screaming and upset. § 87(2)(b) was screaming that the officers were stepping on his Louis Vuitton shoes, but no one stepped on § 87(2)(b)'s

shoes or feet at any point. PO Radoncic did not recall whether § 87(2)(b) was ever bent over the trunk of the car and he did not believe he ever pushed § 87(2)(b) against the car. § 87(2)(b) never appeared to have trouble breathing. It took approximately 30 seconds at most to handcuff § 87(2)(b) and there were no issues in doing so other than the fact that he was screaming. PO Radoncic did not ever place his hands on § 87(2)(b)'s back or the back of his neck, place pressure on § 87(2)(b)'s back or airway, or do anything to restrict § 87(2)(b)'s breathing, and he did not see any other officer do so. When presented with portions of his BWC footage which depict § 87(2)(b) bent over the trunk, PO Radoncic stated that he did not see § 87(2)(b)'s torso against the vehicle, but that the officers may have tripped because § 87(2)(b) was moving around, causing § 87(2)(b)'s arm to make contact with the trunk. The only time § 87(2)(b) complained of difficulty breathing was as the officers were walking him back to the car, at which point he was standing upright and there was nothing that could have restricted his breathing.

Lt. Guida provided testimony consistent with PO Radoncic's.

NYPD Patrol Guide, Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of service or a third person, or when it is reasonable to place a person in custody (**BR 18**). The member of service must use only the reasonable force necessary to gain control of the individual. When a member of service must control an uncooperative subject, they may rear-cuff them. They must also position the subject to promote free breathing as soon as safety permits by sitting the person up or turning them to their side. Officers must also observe the subject closely for signs of difficulty breathing.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (L) Abuse of Authority: Officers refused to provide their names to § 87(2)(b).

Allegation (M) Abuse of Authority: Officers failed to provide § 87(2)(b) with a business card.

Allegation (N) Abuse of Authority: Lieutenant Daniel Guida did not obtain medical treatment for § 87(2)(b).

PO Smith's BWC footage, from the 04:35 to 04:56 minute marks of the media player timestamp (visible at the bottom of the screen), shows § 87(2)(b) yelling that he cannot breathe three or four times while being escorted to the car (**BR 05**). He states to call the police because he cannot breathe. Lt. Guida's BWC footage, from the 03:31 to 05:01 minute marks, shows § 87(2)(b)

§ 87(2)(b) being placed in handcuffs and walked to the police vehicle in its entirety (**BR 02**). At no point does § 87(2)(b) request any officer's name or business card. PO Schreckenstein's BWC footage, from the 06:55 to 07:01 minute marks, which captures the portion of this incident that took place in the police vehicle with PO Smith and Lt. Guida present, captures § 87(2)(b) stating, "I want to go see the doctor after this, y'all violated me" (**BR 04**). No officer's BWC footage captures § 87(2)(b)'s entire time in the stationhouse, and no officer is captured offering or agreeing to provide § 87(2)(b) their name or business card, or to obtain medical treatment.

§ 87(2)(b) testified that he said to the officers generally that he wanted their business cards and names while he was being handcuffed and taken to the police vehicle, but that he did not ask any of them individually. None of the officers provided their name or business card to him. Once in the vehicle, § 87(2)(b) stated that he was having trouble breathing and requested that they call 911. The officers responded to this by stating that they were 911.

Neither PO Radoncic nor Lt. Guida recalled whether § 87(2)(b) requested any information from any of the officers, including their names. They did not recall whether they or anyone provided their name or business card to § 87(2)(b) but they did not ever refuse to do so. PO Radoncic did not know whether any officer offered a business card to § 87(2)(b) but he did not because it was not required during a car stop unless requested, which it was not. PO Radoncic testified that § 87(2)(b) did not specifically request medical treatment, but he believed that an officer, possibly himself, offered medical attention to § 87(2)(b) when placing him in a holding cell, but § 87(2)(b) refused medical attention.

The 71st Precinct Command Log for January 14, 2021 contains an entry at 10:20p.m. which notes that summons # § 87(2)(b) was issued to § 87(2)(b) and he was released (**BR 36**). The entry notes that § 87(2)(b) did not request medical attention, and does not indicate whether § 87(2)(b) ever refused medical attention, nor does it depict medical attention being obtained.

NYC Administrative Code 14-174 states that officers must offer a business card to any individual with which they conduct a law enforcement activity, such as a vehicle search, at the conclusion of any such activity that does not result in an arrest or summons, or upon request (**BR 19**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (O) Offensive Language: An officer made remarks to § 87(2)(b) based upon his race.

Allegation (P) Offensive Language: An officer made offensive remarks to § 87(2)(b) based upon his perceived mental abilities.

Allegation (Q) Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that in the officers' vehicle en route to the stationhouse, one of the officers under his breath called § 87(2)(b) a "Stupid nigger." § 87(2)(b) did not recall the exact context surrounding this statement. § 87(2)(b) did not see which officer stated this, but he believed it was one of the officers in the front seat of the vehicle. There was nothing distinctive about the voice, and it was not very deep.

Lt. Guida's BWC footage, from the 05:36 to 08:17 minute marks of the media player timestamp (visible at the bottom of the screen) (BR 02), PO Schreckenstein's BWC footage, from the 05:31 to 08:12 minute marks (BR 04), and PO Smith's BWC footage, from the 05:33 to 08:21 minute marks (BR 05), all capture the portion of the incident in which § 87(2)(b) is transported to the 71st Precinct stationhouse in full. Lt. Guida sat in the front passenger's seat, PO Smith sat in the rear driver's side seat, and PO Schreckenstein operated the vehicle. At no point in any of these recordings is an officer audible stating that § 87(2)(b) is a "stupid nigger," nor are officers audible making any statements referencing § 87(2)(b)'s race or perceived mental abilities.

Lt. Guida denied ever making such a statement, hearing another officer making such a statement, or saying anything under his breath at all.

§ 87(2)(g)

Allegation (R) Abuse of Authority: Police Officer Mirsad Radoncic searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) testified that an officer drove his vehicle to the stationhouse. He was placed in a cell for approximately 20 minutes, after which officers provided § 87(2)(b) with his car keys, phone, car, and other possessions, along with a criminal court summons for unlawful possession of marijuana. § 87(2)(b) did not allege an inventory search, and therefore did not provide the investigation with a list of items that were in his vehicle.

PO Radoncic's first BWC video, from the 05:24 to 05:36 minute marks of the media player timestamp (visible at the bottom of the screen), shows PO Radoncic approaching § 87(2)(b)'s vehicle outside § 87(2)(b) and getting inside (BR 03). PO Radoncic's third BWC video, from the 00:00 to 00:10 minute marks shows PO Radoncic leaning inside the driver's seat of § 87(2)(b)'s vehicle, and shining his flashlight into the center console and cupholder. He opens the center compartment and looks through a pile of what appears to be receipts, and pulls out § 87(2)(b)'s driver's license. There is a small white cable visible on the left side of the frame, and the rest of the vehicle is not visible. It is not clear from these two videos what if anything § 87(2)(b) has inside his vehicle.

PO Radoncic testified that he performed an inventory search of § 87(2)(b)'s vehicle at the stationhouse, though he did not recall definitively who if anyone performed this search with him. PO Radoncic stated that he did not document the inventory search in his memo book, did not create an inventory list, did not record the search with his BWC, and did not prepare vouchers for any items located within the vehicle. When asked why he did not prepare any type of inventory list, PO Radoncic replied, "Couldn't even tell you."

Lt. Guida testified that he was not aware of any inventory search of § 87(2)(b)'s vehicle.

No property voucher was prepared for § 87(2)(b)'s vehicle. The only property voucher prepared for items related to § 87(2)(b) was for the aforementioned marijuana (BR 16). An inventory search of § 87(2)(b)'s vehicle was not documented in memo book entries by PO Radoncic, PO Smith, PO Schreckenstein, or Lt. Guida, nor was it documented in the 71st Precinct Command Log for January 14, 2021 (BR 32-36).

An inventory search of a vehicle, following a lawful arrest of a driver of a vehicle, is permissible when the search is in accordance with police procedure, results in a meaningful

inventory list, and the primary objective is to preserve the property of the defendant, protect the police from a claim of lost property, and protect police and others from dangerous instruments, per People v. Padilla, 21 N.Y.3d 268 (2013) (**BR 20**); People v. Galak, 594 N.Y.S.2d 689, 610 N.E.2d 362 (1993) (**BR 21**). NYPD Patrol Guide, Procedure 218-13 states that whenever property comes into the custody of the Department, all valuables inventoried from a vehicle must be removed and invoiced in a property voucher (**BR 22**). Property of little value that is left inside the vehicle should within reason be listed in the officer's memo book and cross referenced to the invoice number covering any valuables removed.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and has been named as a victim in four other allegations (**BR 24**):
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 25**).
- PO Radoncic has been a member of service for three years and has been a subject in five other CCRB complaints comprised of 10 allegations, none of which were substantiated. § 87(2)(g)
- Lt. Guida has been a member of service for 15 years and has been a subject in 22 other CCRB complaints comprised of 96 allegations, of which 17 were substantiated:
 - Case # 201707882 involved substantiated allegations of a frisk, search of person, and a vehicle search. The Board recommended Charges and the NYPD imposed a penalty of five vacation days.
 - Case # 202004652 involved substantiated allegations of an entry of premises, failure to provide business card, frisk, threat of arrest, threat to notify ACS, discourtesy, and offensive language. The Board recommended Charges, and the NYPD has not yet imposed discipline.
 - Case # 202005460 involved substantiated allegations of threat of arrest,

discourtesy, and failure to provide business card. The Board recommended Charges, and the NYPD has not yet imposed discipline

- § 87(2)(g) [REDACTED].

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of November 24, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR 25**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]

Squad: 13

Investigator: Isabel Cifarelli Inv. Isabel Cifarelli 07/07/22
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date